

Daelman — Theologia, Tom. IV De Fide (Antwerp 1735), with the Mechelen Recollect theses of 1768

Latin–English parallel text: Q. II Obs. II excerpt (printed 13–15); Q. VI Obs. II entire (printed 174–178); Q. VII Obs. III excerpt (printed 227) and Obs. IV excerpts (printed 231, 238); Maes theses 1768 (pp. 1–2, 6)

Latin

BLOCK A — Q. II Obs. II, printed 13–15

Porro notandum, non esse idem dicere, illud est objectum materiale Fidei, & illud est de fide scilicet obligante : quia ad primum sufficit, quod à parte rei sit revelatum à Deo, tunc siquidem fides circà illud versari potest : ad secundum insuper requiritur, quod illud revelatum à Deo, proponatur ab Ecclesiâ tamquam tale, ut sit de fide obligante Catholicâ sive universali, vel saltem constet aliundè illud esse à Deo revelatum ; tunc verò illud erit de fide obligante respectu eorum tantum, quibus de revelatione constabit. Hinc quæ à Deo revelantur particularibus, etiam sunt de fide obligante, sed non Catholica sive universali omnes obligante : & sic Prophetis & aliis quandoque constitit de revelatione divinâ aliter quam per propositionem Ecclesiæ, illaque erant respectu eorum de fide obligante.

Ex quibus patet, quo sensu dicatur, quod aliquid modò possit incipere esse de fide, & desinere esse de fide obligante etiam Catholica ; non quod revelatum à Deo possit desinere esse revelatum, vel non revelatum à Deo possit jam esse revelatum pro totâ Ecclesiâ, quia non ampliùs expectantur novæ pro totâ Ecclesiâ revelationes, postquam Spiritus Sanctus omnia, quæ generatim tenet Ecclesia Catholica Apostolis revelavit, eosque docuit omnem veritatem : sed quia revelatum à Deo antè, ut tale non propositum ab Ecclesiâ, possit ut tale proponi, quod sæpiùs accidit in Conciliis, quod consequenter post propositionem Concilii erit de fide obligante, quod tale antè non erat, licet fuerit antè à Deo revelatum. E contrà illud fuerat de fide obligante tempore Apostolorum, quibus revelatio erat proposita, & postea

English

BLOCK A — Q. II Obs. II, printed 13–15

Further, it is to be noted that it is not the same thing to say *that is the material object of faith* and *that is of faith*, namely of obligating faith [*de fide obligante*]: because for the first it suffices that on the side of the thing it be revealed by God, since then faith can be concerned with it; for the second there is required besides that what has been revealed by God be proposed by the Church as such, so that it may be of obligating faith, Catholic or universal, or at least that it be established from elsewhere that it has been revealed by God; and then it will be of obligating faith only in respect of those to whom the revelation is established. Hence the things which are revealed by God to particular persons are also of obligating faith, but not of Catholic or universal faith obligating all: and thus for the Prophets and for others the divine revelation was sometimes established otherwise than through the proposition of the Church, and those things were, in respect of them, of obligating faith.

From these things it is clear in what sense it is said that something can now begin to be of faith, and can cease to be of obligating faith, even Catholic; not that what has been revealed by God can cease to be revealed, or that what has not been revealed by God can now be revealed for the whole Church, because no new revelations for the whole Church are awaited any longer, after the Holy Spirit revealed to the Apostles all the things which the Catholic Church holds in general, and taught them all truth: but because what was revealed by God before, and was not proposed as such by the Church, can be proposed as such, which has happened rather often in Councils, and this will consequently, after the proposition of the Council, be of obligating faith, which before was not such, although it had been revealed by God before. Conversely, something had been of obligating faith in the time of the Apostles, to whom the revelation had been proposed, and

Latin

desiit esse de fide defectu propositionis ex parte Ecclesiæ, quâ illud proposuisset tamquam à Deo revelatum. Si autem post Apostolos potuit aliquod revelatum non proponi ab Ecclesiâ ut revelatum ; ita potest fieri successu temporis, ut quod modò proponitur ut revelatum à Deo, postea non ita constet de istâ propositione, & sic desinat esse de fide obligante, licet maneat semper revelatum & quidem taliter, ut dum opus fuerit, Ecclesia, assistente & illuminante Spiritu Sancto, possit illud cognoscere & iterum proponere fidelibus tamquam à Deo revelatum.

Hinc etiam sequitur, non dari aliquid, quod probabiliter sit tantum de fide obligante : quia eo ipso quo certò non constat illud esse à Deo revelatum, certum est non esse de fide obligante : imò non posse esse de fide ; cum fides non assentiatur nisi illis, quæ certò sunt à Deo revelata. Bono tamen sensu posset aliquid admitti probabiliter tantum de fide, scilicet si intelligatur, quod illud sit probabiliter à Deo revelatum.

An conclusio, quæ deducitur ex duâbus præmissis de fide, vel ex unâ de fide & alterâ cognitâ ratione naturali, sit de fide obligante ? quæstio videtur magis de nomine : v. g. an sit de fide, quod hic puer, quem constat à me baptizatum, sit justificatus ; hæc hostia à me consecrata sit adoranda,&c. illa conclusio deducitur ex his præmissis : omnis legitimè baptizatus est justificatus, hic puer est legitimè baptizatus, ergò est justificatus. Ad quod respondendum, si præsupponentes præmissam de fide, conclusioni assentiamur ob evidentiam consequentiæ, prout sæpius in Scholasticâ accidit, non erit nisi assensus Theologicus, non autem Fidei : si verò supponentes præmissam & consequentiam ex ratione certam, ad assensum conclusionis feramur ob revelationem præmissæ de fide, tunc aliqui dicunt ibi esse assensum Fidei ; sed tamen propriè fides ista non tendit in hanc individuum conclusionem, quod hic puer sit justificatus, sed in ipsum genus conformiter ad maiorem præmissam generalem, nimirum puerum legitimè baptizatum esse justificatum, & sic non tam in conclusionem, quam in maiorem præmissam feror assensu Fidei. Et sic de cæteris ; præterquam quod sit aliquid particulare in quæstione sequente, an sit de fide modernum Pontificem esse verum Christi Vicarium & successorem S. Petri ? de quâ aliquid dicetur in tractatu de Pontifice ; scilicet quod in Pontifice habeatur iudicium Ecclesiæ,

English

afterwards it ceased to be of faith for want of a proposition on the part of the Church, by which she would have proposed it as revealed by God. But if after the Apostles something revealed could fail to be proposed by the Church as revealed, so it can come about in the course of time that what is now proposed as revealed by God may afterwards not be so established by that proposition, and thus cease to be of obligating faith, although it always remains revealed, and indeed in such a way that, when there shall be need, the Church, with the Holy Spirit assisting and enlightening her, can know it and propose it again to the faithful as revealed by God.

Hence it also follows that there is nothing which is only probably of obligating faith: because by the very fact that it is not certainly established that it has been revealed by God, it is certain that it is not of obligating faith; indeed that it cannot be of faith, since faith assents only to those things which are certainly revealed by God. Yet in a good sense something could be admitted to be only probably of faith, namely if it be understood that it is probably revealed by God.

Whether a conclusion which is deduced from two premises of faith, or from one of faith and another known by natural reason, is of obligating faith? The question seems rather one of name: for example, whether it is of faith that this child, whom it is established that I have baptized, is justified; that this host consecrated by me is to be adored, etc. That conclusion is deduced from these premises: everyone legitimately baptized is justified; this child is legitimately baptized; therefore he is justified. To which it must be answered: if, presupposing the premise of faith, we assent to the conclusion on account of the evidence of the consequence, as happens rather often in Scholastic practice, it will be only a theological assent, not one of faith; but if, supposing the premise and the consequence to be certain from reason, we are borne to the assent of the conclusion on account of the revelation of the premise of faith, then some say that there is there an assent of faith; but nevertheless that faith does not properly tend to this individual conclusion, that this child is justified, but to the very kind conformably to the general major premise, namely that a child legitimately baptized is justified, and so I am borne by the assent of faith not so much to the conclusion as to the major premise. And so of the rest; except that there is something particular in the following question, whether it is of faith that the modern Pontiff is the true Vicar of Christ and successor of St. Peter? On which something will be said in the treatise on the Pontiff; namely that in the Pontiff one has the judgment of the Church, which on this point does not seem able to be deceived,

Latin

quod in isto puncto non videtur posse falli, quia turpiùs est agnoscere Caput falsum, quam nullum habere ; deindè posset hic malè definire, nec Ecclesia posset laborare ad alium ; aliud est, dùm nullus est. Circà puerum baptizatum aut hostiam consecratam, est tantùm iudicium particulare, imò non adeò interesset, quod in hoc particulari Ecclesia erraret.

BLOCK B — Q. VI Obs. II entire, printed 174–178

OBSERVATIO SECUNDA.

Quo jure Romanus Pontifex in primatu succedat Divo Petro.

NOtandum, esse de fide, quod Petrus habuerit primatum. Item quod ille Primatus duret in Ecclesia. Item quod ille Primatus competat Episcopo Romano seu Pontifici, sed de hoc posteriori quæritur an ei competat jure divino vel humano, quod non est de fide, sed controverti potest.

Liber cui titulus *l’Autorité du Pape reduitte aux justes bornes*, tenet ei tantùm competere jure humano. Communiter tenetur contrarium apud Wiggers & Boudart & Steyaert. Quia vel Sanctus Petrus ivit Romam instinctu divino, vel etsi ivisset humano, interim Spiritus Sanctus, postquam ibi Sanctus Petrus Episcopatum Romanum susceperat, regulavit ut primatus annexeretur Episcopatui Romano, ita ut ille, qui ei succederet in Episcopatu Romano, succederet. & ei in primatu[1] Illa sensibilibiter fiebant in initio Ecclesiæ ut ponitur in actibus Apostolorum, *segregate mihi Paulum & Barnabam*.

Illi qui tenent esse annexum primatum jure solùm humano, dicunt, illud tantùm à Christo vel Spiritu Sancto esse regulatum & revelatum, quod ille Episcopatus haberet primatum, quem Ecclesia designasset, designavit autem Ecclesia ab initio post mortem Sancti Petri, vel etiam cum Petro Episcopatum Romanum ; adeòque secundùm illos de fide est, quod Episcopus Romanus habeat primatum post designationem Ecclesiæ & tamdiù, quam illa designatio durabit. Consequenter posset Ecclesia mutare, aiunt, quia illud est revelatum quod ille Episcopatus haberet primatum, quem Ecclesia designasset. Sicut de fide est quod Ananias possederit agrum quem vendidit, licèt non possederit illum jure divino sed tantùm humano. Si eis

English

because it is more shameful to acknowledge a false Head than to have none; next, this man could define badly, and the Church could not work toward another; it is otherwise when there is none. Concerning a baptized child or a consecrated host, there is only a particular judgment; indeed it would not matter so much that in this particular case the Church should err.

BLOCK B — Q. VI Obs. II entire, printed 174–178

SECOND OBSERVATION.

By what right the Roman Pontiff succeeds St. Peter in the primacy.

It is to be noted that it is of faith that Peter had the primacy. Likewise that that Primacy endures in the Church. Likewise that that Primacy belongs to the Roman Bishop or Pontiff; but concerning this last it is asked whether it belongs to him by divine or by human right, which is not of faith, but can be disputed.

The book whose title is *l’Autorité du Pape reduitte aux justes bornes* holds that it belongs to him only by human right. The contrary is commonly held in Wiggers and Boudart and Steyaert. Because either St. Peter went to Rome by divine instinct, or, even if he had gone by human instinct, meanwhile the Holy Spirit, after St. Peter had there undertaken the Roman episcopate, ordained that the primacy should be annexed to the Roman episcopate, so that he who should succeed him in the Roman episcopate should succeed him also in the primacy.[1] Those things were done perceptibly at the beginning of the Church, as is set down in the Acts of the Apostles: *Separate me Paul and Barnabas*.

Those who hold that the primacy is annexed by human right alone say that this only was ordained and revealed by Christ or by the Holy Spirit, that that episcopate should have the primacy which the Church should have designated; and the Church designated from the beginning, after the death of St. Peter, or even together with Peter, the Roman episcopate; and so according to them it is of faith that the Roman Bishop has the primacy after the designation of the Church, and for as long as that designation shall last. Consequently the Church could change it, they say, because this is what is revealed, that that episcopate should have the primacy which the Church should have designated. Just as it is of faith that Ananias possessed the field which he sold, although he did not possess it by divine right but only by human right. If the holy Fathers are objected against them in favour of the

Latin

objiciantur SS. Patres pro contraria sententia, concedent quidem quod ipsa autoritas seu primatus quem habet Pontifex sit institutionis divinæ, sed quod illum non possideat ex institutione divina.

Sed omnino videtur dicendum, quod possideat jure divino, numquam enim Primatus fuit separatus etiam in maximis causis. Et revera punctum illud est nimis magni momenti, ut Christus vel Spiritus Sanctus id per se non regulassent. Nam fuerunt urgentissimæ rationes ob quas alium Ecclesia determinare debuisset, quod tamen numquam fecit, signum ergo est, quod apprehendatur institutionis divinæ, circa quam nihil potest jus humanum mutare. Primis tribus sæculis pagani Imperatores Romæ fuerunt, ac atrociter sævierunt, ita ut semper latere debuerit Pontifex & qui illis temporibus fuerunt, Martyrio affecti sunt, tamen de primatu aliò transferendo numquam cogitatum est. Constantinus Constantinopolim ita augere studuit, ut eam *novam Romam* appellaverit, & quidquid ad decorem urbis Romæ fuit, eo contulerit, sed de primatu pro Episcopo Constantinopolitano non cogitavit, qui ad urbis magnificentiam certò conduxisset, & quod si possibile fuisset ab Episcopis faciliè obtinuisset. Fuerunt diversi Pontifices, qui non Romæ sed in Gallia resederunt septuaginta circiter annis, inter quos aliqui redire nolebant, sed nec tunc primatum ab Episcopatu Romano sejungere cogitatum est ergo &c.

Deinde aliorum sententia posset schismaticis majorem occasionem dare, dum ab una parte alii pro illo, alii pro isto starent, volentes hunc non illum Episcopum determinatum ab Ecclesia ; cur ergo, qui Antiochiæ successit Petro in Episcopatu, etiam non successit in primatu ; quia Petrus deserens Antiochiam deseruit Episcopatum, non autem deseruit primatum, sed eum cum Episcopatu Romæ moriens conjunctum reliquit.

Cur Romanus Episcopus succedit Petro in primatu, & non alii Episcopi Apostolis in illa potestate prædicandi Evangelium omni creaturæ & aliis prærogativis. Resp. Quia primatus ex voluntate Christi perpetuus erat in Ecclesia, item necessarius ut antè probavimus, non autem necessarium erat, ut omnes Episcopi

English

contrary opinion, they will indeed concede that the authority or primacy itself which the Pontiff has is of divine institution, but that he does not possess it from divine institution.

But it seems altogether to be said that he possesses it by divine right, for the Primacy was never separated, even in the greatest crises. And in truth that point is of too great moment for Christ or the Holy Spirit not to have ordained it of themselves. For there were most urgent reasons on account of which the Church ought to have determined another, which nevertheless she never did; it is therefore a sign that it is understood to be of divine institution, about which human right can change nothing. In the first three centuries pagan Emperors were at Rome, and reigned atrociously, so that the Pontiff always had to lie hidden, and those who lived in those times were put to martyrdom; yet transferring the primacy elsewhere was never thought of. Constantine strove to enlarge Constantinople so far that he called it *new Rome*, and conferred upon it whatever belonged to the adornment of the city of Rome; but he did not think of the primacy for the Bishop of Constantinople, which would certainly have contributed to the magnificence of the city, and which, if it had been possible, he would easily have obtained from the Bishops. There were various Pontiffs who resided not at Rome but in Gaul for about seventy years, among whom some were unwilling to return; but not even then was separating the primacy from the Roman episcopate thought of; therefore etc.

Next, the opinion of the others could give greater occasion to schismatics, while on the one side some would stand for this man, others for that, wishing this and not that Bishop to be the one determined by the Church. Why then did he who succeeded Peter at Antioch in the episcopate not also succeed him in the primacy? Because Peter, in deserting Antioch, deserted the episcopate, but did not desert the primacy; rather, dying at Rome, he left it joined to the episcopate.

Why does the Roman Bishop succeed Peter in the primacy, and not the other Bishops succeed the Apostles in that power of preaching the Gospel to every creature and in the other prerogatives? R. Because the primacy was, by the will of Christ, perpetual in the Church, and likewise necessary, as we proved before; but it was not necessary that all Bishops should succeed the Apostles in all those prerogatives which the Apostles had.

Latin

Apostolorum successores in illis omnibus prærogativis, quas Apostoli habuerunt, succederent.

Quomodò in aliorum sententiâ adhuc verum est, quod diximus esse de fide scilicèt Episcopatui Romano annexum esse primum. Respondetur, quia licèt juxtà illos tantùm hoc sit de jure humano, tamen adhuc revelatum est, inquiunt, quod Petrus haberet successorem, & quod esset ille, quem Ecclesia determinaret : & constat Ecclesiam ab initio determinasse Episcopum Romanum. Neque enim impedit jus humanum, eo quod multa sic sint de fide, quia modò revelata sunt, v. g. in Scriptura habetur, quod ager fuerit istius vel illius, hoc est de fide æquè revelatum, tamen quod ager fuerit illius vel istius, hoc antè jure tantùm humano factum est.

Nec objicias, quod posset Roma fieri hæretica, & Cardinales hæretici, qui non vellent eligere nisi Pontificem hæreticum. Resp. Negatur namquè id fieri posse. Quia Christus numquam permittet suam Ecclesiam in tantos errores prolabi.

Ne opponas etiam quod posset Roma absorberi. Resp. Etiam si hoc concedatur, adhuc posset esse ejus Episcopus licèt mare tegetet Romam, sicut dantur Episcopatus in partibus infidelium. Deindè indè tantùm sequitur, quod tunc aliud regularet Spiritus Sanctus, vel ad summum quod tunc Ecclesia posset designare alium Primum, licèt, donec durabit Episcopatus Rom., sit ei jure divino annexus primatus.

Licèt sit de fide quod, positâ designatione Ecclesiæ etiam secundùm alios, Pontifex seu Episcopus Romanus in generali legitimè electus habeat primum ; quæritur tamen, an etiam sit de fide, quod hic particularis Episcopus Romanus habeat primum ? & quæstio ferè nominis est, sicut an sit de fide quod hic puer sit justificatus, qui est baptizatus. Resp. Meliùs dicitur, quod illud sit tantùm de fide *in generali*, quod puer legitimè baptizatus sit justificatus, quia hoc est tantùm revelatum, de puero particulari est tantùm conclusio Theologica, innixa evidenti consequentiæ, ita & de hoc particulari Pontifice. Sola disparitas est, quod judicium Ecclesiæ putetur infallibile, quo agnoscit aliquem ut legitimè electum Pontificem. Periculum etiam esset, ne quid mali

English

How, on the opinion of the others, is what we said still true, namely that it is of faith that the primacy is annexed to the Roman episcopate? R. Because, although according to them this is only of human right, yet it is still revealed, they say, that Peter should have a successor, and that it should be the one whom the Church should determine; and it is established that the Church from the beginning determined the Roman Bishop. Nor does human right stand in the way, since many things are of faith in this manner, because they have now been revealed; for example, it is contained in Scripture that a field belonged to this man or to that, and this is equally of faith as revealed, yet that the field belonged to that man or to this was previously brought about by human right alone.

Nor should you object that Rome could become heretical, and the Cardinals heretical, who would be unwilling to elect any but a heretical Pontiff. R. It is denied that this can happen. Because Christ will never permit his Church to fall into such great errors.

Nor should you set against this that Rome could be swallowed up. R. Even if this be conceded, there could still be a Bishop of it, although the sea should cover Rome, just as there are bishoprics in the lands of the infidels. Next, from that it only follows that the Holy Spirit would then ordain otherwise, or at most that the Church could then designate another Primacy, although, so long as the Roman episcopate shall last, the primacy is annexed to it by divine right.

Although it is of faith that, the designation of the Church being posited — even according to the others — the Pontiff or Roman Bishop legitimately elected has in general the primacy, yet it is asked whether it is also of faith that this particular Roman Bishop has the primacy? And the question is almost one of name, just as whether it is of faith that this child, who has been baptized, is justified. R. It is better said that this is of faith only *in general*, that a child legitimately baptized is justified, because this alone is revealed; of the particular child it is only a theological conclusion, resting on an evident consequence, and so also of this particular Pontiff. The only disparity is that the judgment of the Church, by which she acknowledges someone as legitimately elected Pontiff, is held to be infallible. There would also be a

Latin

proponeret Ecclesiæ, quod ipsa tunc teneretur sequi, cum illum habeat pro capite suo.

Dices, Deus benè avertet, ne quid hæreticum definiat. Resp. Potiùs dicamus, Deus avertet talem agnosci, quam, Deus avertet ne sic futurus Papa erret ; sicut dat signa dignoscendi vera miracula à falsis. Adeòque sit certiùs, *ille est legitimè electus Pontifex*, quam illud, *ille est legitimè baptizatus*.

Nec dicas, potest Ecclesia benè esse sine Pontifice, ergò cum ficto. Resp. N. C. quia *nullus* nihil mali definit, sicut fictus. Deindè dùm est nullus, Ecclesia potest laborare ut habeat. Dùm est fictus, & ignoratur ab Ecclesia, non est remedium, non laborabitur ut habeatur verus.

Qui tenent esse de fide quod hic particularis Pontifex sit Primas, non possunt dicere esse de fide Catholica seu obligante, quia licet tenere contrarium. Et sic possunt solvere illam objectionem, quasi scilicèt non posset dari schisma sine hæresi ; respondere siquidem possunt dari schisma sine hæresi, quia si aliquis non vellet agnoscere hunc particularem Pontificem, ille frangeret quidem sine causâ unionem membrorum cum capite & pacem, & sic repugnaret charitati, attamen non esset hæreticus, quia non negat aliquid, quod est de fide Catholica seu obligante, licèt aliqui id putent esse de fide seu revelatum ; aliud est si negant Episcopum Romanum in generali habere primatum. Deindè schisma posset esse sine hæresi, si non negaret quidem hunc Pontificem, sed non vellet cum eo communionem tenere, vel cum suo Episcopo, vel cum aliis membris Ecclesiæ, putans quod ob causas non debeat ei in certo puncto obedire.

Ex illo primatu resultat in Ecclesia Romana quod dicatur omnium Ecclesiarum Mater & Magistra à Concilio Tridentino variis locis citatis in indice rerum Concilii Tridentini, sub verbo *Ecclesia*, & illud ibidem est clariùs, quam in professione fidei, ubi Ecclesia Romana dicitur omnium Ecclesiarum Mater &c. Sed additur *Catholica & Apostolica*, quod aliqui possent interpretari de Ecclesia universali, licèt malè.

English

danger lest he should propose something evil to the Church, which she would then be bound to follow, since she holds him for her head.

You will say: God will surely prevent him from defining anything heretical. R. Let us rather say that God will prevent such a man from being acknowledged, than that God will prevent the man who is thus to be Pope from erring; just as he gives signs for distinguishing true miracles from false. And so it is more certain that *this man is the legitimately elected Pontiff* than that *this man is legitimately baptized*.

Nor should you say: the Church can well be without a Pontiff, therefore she can be with a fictitious one. R. I deny the consequence, because a *nonexistent* one will define nothing evil, as a fictitious one will. Next, while there is none, the Church can work to have one. While there is a fictitious one, and it is unknown to the Church, there is no remedy; there will be no working to have a true one.

Those who hold it to be of faith that this particular Pontiff is Primate cannot say that it is of Catholic or obligating faith, because it is permitted to hold the contrary. And thus they can solve that objection, namely as though there could not be schism without heresy; for they can answer that there can be schism without heresy, because if someone were unwilling to acknowledge this particular Pontiff, he would indeed break without cause the union of the members with the head, and the peace, and so would be repugnant to charity, yet he would not be a heretic, because he does not deny anything which is of Catholic or obligating faith, although some think it to be of faith or revealed; it is otherwise if they deny that the Roman Bishop in general has the primacy. Next, there could be schism without heresy if he did not indeed deny this Pontiff, but were unwilling to hold communion with him, or with his own Bishop, or with the other members of the Church, thinking that for certain causes he ought not to obey him on a certain point.

From that primacy it results in the Roman Church that she is called the Mother and Mistress of all Churches by the Council of Trent, in various places cited in the index of matters of the Council of Trent, under the word *Ecclesia*; and there it is clearer than in the profession of faith, where the Roman Church is called the Mother of all Churches, etc. But there is added *Catholic and Apostolic*, which some could interpret of the universal Church, though wrongly.

Latin

BLOCK C — Q. VII Obs. III, printed 227

Objicitur ; Catholicè sentit qui tenet Pontificem esse inferiorem Concilio, saltem est sententia quæ Catholicè potest sustineri, ergò Catholicè sustineri potest, quod liceat à Pontifice appellare ad Concilium Generale tamquam ad superius. Resp. Imprimis communiter Concilium Generale non existit, ergò ad illud non potest appellari, nec illud censetur acceptasse illam causam. Ecclesia dispersa acceptat benè definitiones Pontificum vel etiam Episcoporum ; sed illa est infallibilis in acceptando, est in illa infallibilitas passiva, sed non est activa, illa non iudicat etiam acceptando, & sic cessat objectio, scilicèt quomodò potuerint iudicare seu esse iudices, si debebant acceptare Constitutionem *Unigenitus* ; illa enim nihil definit, non fert Leges, non respondet ad dubia, multò minùs acceptat appellationes.

BLOCK D — Q. VII Obs. IV, printed 231 and 238

Hinc possunt dici hæretici, primò, qui totam Constitutionem rejiciunt in omnibus suis punctis ; quia in illa sunt certò propositiones quædam hæreticæ. Secundò, qui rejiceret tantùm aliquam propositionem malè sonantem quia etiam in hoc puncto est regula Fidei ; quia rejiciendo illam, agetur contrà aliquid de Fide, scilicèt, quod Ecclesia etiam in hoc non possit falli, *formam habere sanorum verborum*. Quæ omnia certiora ac clariora evadunt, si attendamus quod illi Constitutioni accesserit Ecclesia tota ; omnes enim Episcopi accesserunt tacitè per tot annos, per Clementem XI. per Innocentium XIII. per Benedictum XIII. Concilium Romanum & Collegium Cardinalium in Conclavi ; jam verò si illa Constitutio mala esset, contrà fidem aut mores, loqui debuissent. Hic obiter etiam notari potest, quod Concilium Romanum sub Benedicto XIII. certò faciat Ecclesiam Romanam adeoque certò Sedem Apostolicam. Nec obstat receptioni ab Ecclesiâ factæ, quod aliqui se opposuerint ; quia hoc semper fuit dùm aliqui fuerunt condemnati & abscissi. Sic Donatistæ trecenti Episcopi condemnati se opposuerunt, quos vicit Augustinus dicens esse conterendos. Ariani centeni & milleni se opposuerunt Concilio Niceno. Calvinistæ & Lutherani multi sese opposuerunt Concilio Tridentino, nec auditi. Imò omnia Concilia Generalia habuerunt oppositiones. In Tridentino nequidem adfuit major pars

English

BLOCK C — Q. VII Obs. III, printed 227

It is objected: He holds a Catholic sense who holds that the Pontiff is inferior to a Council, or at least it is an opinion which can be maintained in a Catholic sense; therefore it can be maintained in a Catholic sense that it is lawful to appeal from the Pontiff to a General Council as to a superior. R. In the first place, commonly a General Council does not exist, therefore appeal cannot be made to it, nor is it reckoned to have accepted that cause. The dispersed Church does indeed accept the definitions of Pontiffs or even of Bishops; but she is infallible in accepting; there is in her a passive infallibility, but not an active one; she does not judge even in accepting; and thus the objection falls away, namely how they could have judged, or been judges, if they had to accept the Constitution *Unigenitus*; for she defines nothing, does not make laws, does not answer doubts, much less accept appeals.

BLOCK D — Q. VII Obs. IV, printed 231 and 238

Hence they can be called heretics: first, those who reject the whole Constitution in all its points, because in it there are certainly certain heretical propositions. Secondly, one who should reject only some ill-sounding proposition, because in this point also there is a rule of Faith; because by rejecting it, something of Faith will be acted against, namely that the Church cannot be deceived in this either, *hold the form of sound words*. All of which turn out more certain and clearer if we attend to the fact that the whole Church has acceded to that Constitution; for all the Bishops acceded tacitly through so many years, through Clement XI, through Innocent XIII, through Benedict XIII, the Roman Council and the College of Cardinals in Conclave; but now, if that Constitution were bad, against faith or morals, they ought to have spoken. Here it can also be noted in passing that the Roman Council under Benedict XIII certainly constitutes the Roman Church, and so certainly the Apostolic See. Nor does it stand in the way of the reception made by the Church that some have opposed themselves; because this always happened when some were condemned and cut off. Thus the Donatists, three hundred Bishops condemned, opposed themselves, whom Augustine overcame, saying that they were to be crushed. Arians by hundreds and by thousands opposed themselves to the Council of Nicaea. Many Calvinists and Lutherans opposed themselves to the Council of Trent, and were not heard. Indeed all General Councils have had oppositions. At Trent not even the greater part of the Bishops was present; the rest consented

Latin

Episcoporum, reliqua tacitè consensit. Sequiturne indè quod illa Concilia non sint acceptata à totâ Ecclesia, quia aliqui sunt condemnati & abscissi ? prout & moderni sunt, qui dicunt, quod Constitutio sæpè dicta repugnet Evangelio, condemnet puncta fidei &c. quod hæreticum est dicere de totâ Ecclesia, quæ Constitutionem accepit, cum illa in fide errare nequeat. Profectò si Constitutio hæc non sit ab Ecclesiâ recepta, nulla est recepta, quia nulla est tam famosè acceptata. Pontifex dicit esse ab Ecclesiâ receptam, quis alius, quam ipse, potest hoc declarare, omnes hoc concedunt Pontifici, quod ipsius sit promulgare resolutiones Ecclesiæ, ut caput Ecclesiæ. Ipsius est, inquit S. Thomas, edere Symbolum & proponere Ecclesiæ, ut ab omnibus inconcussâ fide teneatur, aliàs unusquisque erit Magister in declarando sensu Ecclesiæ dispersæ.

Objicies 5.[2] Consensus Episcoporum ad Constitutionem non est consensus illorum ut iudicum, quia Pontifex dicit se nolle ut sua Bulla examinetur. Resp. Episcopis non est prohibitum examinare propositiones, ut simul cum Pontifice judicent, sed Bullam. Nec Pontifex excludit omne examen, sed tantum dum est recepta à totâ Ecclesiâ, ut Pontifex dicit in litteris *Pastoralis officii*. Ubi significat examen ipsum factum esse, adeoque fieri posse. Dum igitur urget Bullam esse acceptatam ab Ecclesiâ, obedire debent Episcopi ut legi Superioris, sed non erit lex Ecclesiæ, nisi accesserit eorum consensus, ut antè dictum est ; & eatenus examinare possunt, ut accedentibus eorum suffragiis, non tantum sit lex Superioris sed & Ecclesiæ. Adeoque prohibetur iterum examen, quasi illud requireretur ut sit lex Superioris obligans, nam certè Pontifex per se habet potestatem mandandi, & subditorum etiam Episcoporum est obedire, ut legi tali, sed si non accesserit eorum consensus, non erit lex Ecclesiæ.

BLOCK E — Maes, Theses theologicae, Mechliniae 9 Aug. 1768

(i) Title page (p. 1)

THESES | THEOLOGICÆ | DE | FIDE, SPE, CHARITATE | ET |
RELIGIONE, | QUAS, PRÆSIDE | F. LEONARDO MAES |
Ordinis Fratrum Minorum Recollectorum | Sacræ Theologiæ

English

tacitly. Does it follow from that that those Councils were not accepted by the whole Church, because some were condemned and cut off? — as there are also moderns who say that the often-mentioned Constitution is repugnant to the Gospel, condemns points of faith, etc.; which it is heretical to say of the whole Church, which accepted the Constitution, since she cannot err in faith. Assuredly, if this Constitution be not received by the Church, none is received, because none is so famously accepted. The Pontiff says that it has been received by the Church; who else than he himself can declare this? All concede this to the Pontiff, that it is his to promulgate the resolutions of the Church, as head of the Church. It is his, says St. Thomas, to publish the Symbol and to propose it to the Church, that it may be held by all with unshaken faith; otherwise every single man will be a Master in declaring the sense of the dispersed Church.

You will object, 5.[2] The consent of the Bishops to the Constitution is not their consent as judges, because the Pontiff says that he does not wish his Bull to be examined. R. The Bishops are not forbidden to examine the propositions, so that they may judge together with the Pontiff, but the Bull. Nor does the Pontiff exclude all examination, but only while it has been received by the whole Church, as the Pontiff says in the letters *Pastoralis officii*. Where he signifies that the examination itself has been made, and so that it can be made. While therefore he urges that the Bull has been accepted by the Church, the Bishops ought to obey it as the law of the Superior; but it will not be the law of the Church unless their consent has acceded, as was said before; and to that extent they can examine, so that, with their votes acceding, it may be not only the law of the Superior but also of the Church. And so examination is forbidden again, as though it were required in order that it be an obligating law of the Superior; for certainly the Pontiff of himself has the power of commanding, and it belongs to subjects, even to Bishops, to obey, as such a law; but if their consent has not acceded, it will not be the law of the Church.

BLOCK E — Maes, Theses theologicae, Mechliniae 9 Aug. 1768

(i) Title page (p. 1)

THESES | THEOLOGICAL | ON | FAITH, HOPE, CHARITY | AND |
RELIGION, | WHICH, UNDER THE PRESIDENCY OF | F. LEONARD
MAES | of the Order of Friars Minor Recollect, | Lecturer in Sacred

Latin

Lectore, | DEFENDENT | F. CORNELIUS VAN GOMPEL | F. ADRIANUS SENGERS | EJUSDEM ORDINIS. | *Mechliniæ, in Conventu FF. Min. Recollectorum | die 9. Augusti 1768. horâ 9. ante, | & 3. post meridiem.* | [engraved cartouche with the Franciscan arms: a cross, the crossed arms of Christ and St Francis, and a scroll lettered SANCTI PATRIS N[OSTRI]] | *LOVANII*, Typis JOANNIS JACOBS, plateâ Thenensi | sub signo Clavis Nigræ.

(ii) THESIS I. FIDES — §. I. *Ejus natura, objectum* (p. 2)

... Objectum fidei primum *Deus* est, secundarium *omnis veritas*, à Deo *revelata* : aliqua tamen absolutè revelabilis est, quæ objectum fidei esse non potest. Objectum formale fidei non est Divinitas aut Dei dominium, nec revelatio, vel Ecclesiæ autoritas ; sed objectum formale sola est Divina veritas ; quæ tamen revelationem tamquam conditionem necessariò præsupponit. Ecclesia tamen quoque in fidei analysi suam habet partem, non quasi motivum credendi ; sed quia proponit credibile, testimonium perhibens irreformabile de Divinâ revelatione. Hinc, quantumvis ad aliquid credendum fide divinâ, & respectivè obligatoriâ, sufficiat revelatio privata, tamen nullatenus sufficit, ut credatur aliquid fide Catholicâ. Enimverò objectum, tametsi revelatum sit, non est de fide Catholica omnes obligante, nisi illud ut tale ab Ecclesia Catholica fuerit propositum. Quocirca dicit S. Aug. lib. contra Epist. fund. Cap. 5. *Evangelio non crederem, nisi me Ecclesia Catholica commoveret autoritas*, scilicet non ut formalis ratio credendi, sed ut conditio proponens objecta revelata, ac proinde informata veracitate Divinâ, in quam fides absque vitio circuli formaliter & ultimatè resolvitur.

(iii) §. 5. *Concilium, & Pontifex* — numbered paragraph 2 (pp. 6–7)

2. Romanus Pontifex, legitimè electus, juxta irreformabile verbum Christi accipit, & possidet claves regni cælorum, cum ligandi, atque solvendi plenitudine potestatis ; cùm enim suprema in Ecclesiam potestas, Matth. 16. promissa, Joan. 21. data sit Petro, non tam ad dignificandam hujus personam, quam ad gubernandam illius sponsam Ecclesiam, semper duraturam, in legitimo successore non deficit. Porro legitimum Petri successorem, fide

English

Theology, | WILL DEFEND | F. CORNELIUS VAN GOMPEL | F. ADRIAN SENGERS | OF THE SAME ORDER. | *At Mechlin, in the Convent of the Friars Minor Recollect, | on the 9th day of August 1768, at the 9th hour before, | and the 3rd after midday.* | [engraved cartouche with the Franciscan arms: a cross, the crossed arms of Christ and St Francis, and a scroll lettered SANCTI PATRIS N[OSTRI]] | *AT LOUVAIN*, From the press of JOANNES JACOBS, in the Tienen street | at the sign of the Black Key.

(ii) THESIS I. FIDES — §. I. *Ejus natura, objectum* (p. 2)

... The primary object of faith is *God*, the secondary *every truth revealed by God*: yet something is absolutely revealable which cannot be an object of faith. The formal object of faith is not the Divinity or the dominion of God, nor revelation, nor the authority of the Church; but the formal object is the Divine truthfulness alone, which nevertheless necessarily presupposes revelation as a condition. Yet the Church too has her part in the analysis of faith, not as though she were the motive of believing, but because she proposes what is credible, bearing an irreformable testimony concerning the Divine revelation. Hence, however much a private revelation may suffice for believing something by divine, and respectively obligatory, faith, yet it is in no way sufficient for anything to be believed by Catholic faith. For indeed an object, even though it be revealed, is not of Catholic faith obligating all, unless it has been proposed as such by the Catholic Church. Wherefore St. Augustine says, in the book against the Epistle of the Foundation, chapter 5: *I would not believe the Gospel, except the authority of the Catholic Church moved me*, namely not as the formal reason of believing, but as a condition proposing the revealed objects, and therefore informed by the Divine truthfulness, into which faith is formally and ultimately resolved without the vice of a circle.

(iii) §. 5. *Concilium, & Pontifex* — numbered paragraph 2 (pp. 6–7)

2. The Roman Pontiff, legitimately elected, according to the irreformable word of Christ receives and possesses the keys of the kingdom of heaven, with the fullness of power of binding and loosing; for since the supreme power over the Church, promised in Matthew 16 and given in John 21 to Peter, was given not so much to dignify his person as to govern His spouse the Church, which is always to endure, it does not fail in his legitimate successor. Further, we believe by divine faith that Clement XIII is the

Latin

divinâ credimus Clementem XIII., pro quo rogavit Christus, ut non deficeret fides ejus, ut proinde non solùm sit hæreditaria potestas suprema gubernandi universam Ecclesiam, sed etiam hæreditaria sit infallibilitas : duo enim privilegia non errandi, rogante Christo, accepit Petrus ; unum, quo non deficeret fides in ejus personâ ; alterum, quo non deficeret in ejus officio, quando confirmare fratres debebat. Horum ergo Privilegiorum unum est *personale*, aliud *hæreditarium*, numquam legitimo Petri successorì defuturum. Est autem Pontifex infallibilis, dum è Cathedra loquitur, seu dum, assumptâ plenitudine potestatis, universam Ecclesiam in fide & moribus definitivè instruit in dogmatibus stabiliendis, erroribus damnandis, Synodis confirmandis, Sanctis canonizandis, & in definiendo *quis*, vel *qualis* sit sensus alicujus libri, nè, errante Pontifice, portæ inferi contra disertissimum Christi testimonium prævalere possent. Est etiam Romanus Pontifex omni Concilio superior. Ad dejiciendam hanc Romani Pontificis[3] auctoritatem supremam, nihil solidè evincitur ex actis Conciliorum, Pisani, Constantiensis, aut Basileënsis. Ad primum enim Resp. quòd respiciat casum Schismatici vel dubii Pontificis. Ad secundum quintuplex dari potest responsio : Prima, Ordinationes 4. & 5. sessionis ex mente Concilii non esse fidei articulos, sed meras *Constitutiones Synodales*. Secunda, 4. & 5. sessione non fuisse Concilium Generale, sed unius dumtaxat obedientiæ, acephalæ, & nondum integræ. Tertia, utriusque sessionis decreta non esse facta *conciliariter*. Quarta, non esse à legitimo Pontifice approbata. Quinta, respicere casum Schismatis, dubiique Pontificis. Quòd si tamen cum Doctissimo *Honorato Tourneli* contendas, in Concilio Basileënsi sess. 2. Decreta Concilii Constantiensia circa supremam Conciliorum auctoritatem confirmata fuisse, eoque tempore præfatum Concilium Basileënsē adhuc legitimum fuisse ad minùs ad 16. sessionem, respondentes nos audies. Si quis objiciat personales Romanorum Pontificum errores, legat August. lib. de unit. Bapt. Cap. 16., ubi discet ; qualescumque fuerint, nihil præjudicare Ecclesiæ. Conabimur interim vindicare à *Monothelismo* Honorium, ab *Arianismo* Liberium, à *Nestorianismo* Vigilium.

English

legitimate successor of Peter, for whom Christ prayed that his faith fail not, so that consequently not only is there a hereditary supreme power of governing the universal Church, but the infallibility also is hereditary: for Peter received two privileges of not erring, at Christ's prayer; one, by which faith should not fail in his person; the other, by which it should not fail in his office, when he was to confirm his brethren. Of these Privileges, therefore, one is *personal*, the other *hereditary*, never to be wanting to the legitimate successor of Peter. And the Pontiff is infallible when he speaks from the Chair, that is, when, having assumed the fullness of power, he definitively instructs the universal Church in faith and morals, in establishing dogmas, in condemning errors, in confirming Synods, in canonizing Saints, and in defining *what* or *of what kind* is the sense of some book, lest, the Pontiff erring, the gates of hell should be able to prevail against the most explicit testimony of Christ. The Roman Pontiff is also superior to every Council. To cast down this supreme authority of the Roman Pontiff,[3] nothing is solidly proved from the acts of the Councils of Pisa, of Constance, or of Basel. For to the first, R. that it regards the case of a schismatic or of a doubtful Pontiff. To the second a fivefold answer can be given: First, that the ordinances of the 4th and 5th sessions were not, in the mind of the Council, articles of faith, but mere *Synodal Constitutions*. Second, that in the 4th and 5th sessions it was not a General Council, but of one obedience only, headless, and not yet complete. Third, that the decrees of both sessions were not made *conciliarly*. Fourth, that they were not approved by a legitimate Pontiff. Fifth, that they regard the case of a Schism and of a doubtful Pontiff. But if nevertheless, with the most learned *Honoré Tournely*, you should contend that in the Council of Basel, session 2, the Constance decrees concerning the supreme authority of Councils were confirmed, and that at that time the aforesaid Council of Basel was still legitimate at least up to the 16th session, you shall hear us answering. If anyone should object the personal errors of the Roman Pontiffs, let him read Augustine, the book on the unity of Baptism, chapter 16, where he will learn that, of whatever sort they may have been, they in no way prejudice the Church. Meanwhile we shall attempt to vindicate Honorius from *Monothelism*, Liberius from *Arianism*, and Vigilius from *Nestorianism*.